

Subject: Town Meeting Resident Access - The Record

From: Stephen Harrington <sth.alist@gmail.com>

Date: 8/19/26, 15:15

To: Michael Cunningham <mcunningham@town.arlington.ma.us>

CC: John Hurd <JHurd@town.arlington.ma.us>, Jim Feeney
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Dear Town Counsel Michael Cunningham,

Thank you for revisiting the resident access issues with Town Meeting that I raised with you in 2023.

I continue to favor a political resolution of the resident-access issue we have discussed since 2023. I have consolidated the record, including the historical TMM Email List/Annotated Warrant data, here:

https://github.com/irl-labs/polis/blob/main/assets/blogs/town_meeting_speech_restrictions/timeline.md

I understand the Town's position to be that the TMM Email List and Annotated Warrant are government functions, not public forums, and that the Moderator administers those functions under rules analogous to Town Meeting procedure.

The historical record now exposes the problem with that characterization. Under the current Moderator, these systems materially changed from predominantly administrative and parliamentary distribution into channels carrying attributed individual advocacy: TMM and resident letters, statements, presentations, responses and rebuttals concerning pending legislation. The fact that the Town owns and administers the infrastructure does not make the individual advocacy transmitted through it government speech.

The Appendix TMM_Email_List Archive section in the timeline linked above is particularly relevant here, I suggest you read that first.

https://github.com/irl-labs/polis/blob/main/assets/blogs/town_meeting_speech_restrictions/timeline.md#tmm_email_list-archive

The remaining questions are narrow: what authority permits the Moderator to condition a resident's germane written advocacy on TMM sponsorship and subjective approval outside Town Meeting proceedings, and what reasonable accommodation protects residents' ability to petition and communicate with their representative legislative body?

The public archive is also incomplete as a record of submissions and dispositions, including my documented dissemination requests after 2022. My outstanding public-records request remains separate and should help complete that factual record.

I continue to seek a narrow political solution: a neutral means for residents to submit germane advocacy concerning pending warrant articles without dependence on a TMM

sponsor or subjective civility/"appropriateness" review, subject to reasonable neutral administrative rules.

I urge you to advise a common sense accommodation to town officials, including Board chair Hurd and manager Feeney copied here.

The record is sufficiently developed for political resolution or adjudication. My preference remains the former.

Regards,

Stephen Harrington

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